

ADDENDUM TO PURCHASE AGREEMENT
RESIDENTIAL RESALE CONDOMINIUMS**ATTENTION BUYER AND SELLER**

This Addendum is to be used in transactions involving the re-sale of condominiums that were created *after* May 19, 1982, and to transactions involving the re-sale of condominiums that were created *prior to* May 19, 1982 *if* a resolution adopting the Condominium Act was approved by a majority of the unit owners and was recorded in the county in which the condominium is located. This form is NOT a Disclosure Statement and is not intended for use by a developer/declarant when originally selling condominium units. Furthermore, this Form does not serve as a Notice of Conversion and is not intended for use by a developer/declarant to give notice to tenants when converting rental units to condominiums.

This Addendum is part of the Purchase Agreement - Residential dated _____ between _____ (“Buyer”)

and _____ (“Seller”)

and relating to the following Property: _____

Unit	Building	Percentage Ownership in Common Areas
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Address (Street, City, State, Zip Code) _____

Legal Description

or see metes and bounds description attached as Exhibit _____ County(ies), New Mexico.

Buyer and Seller agree as follows:

1. **CONDOMINIUM DOCUMENTS.** Seller shall deliver to Buyer, as required by law: Declaration of Condominium other than the plats and plans, bylaws of the owners' association, rules and regulations of the association.
2. **RESALE CERTIFICATE.**
 - A. Seller will request in writing, at Seller's expense (if any), a Resale Certificate from the association containing the information required by New Mexico law to be provided to Buyer. NMAR Form 2302A, Resale Certificate From Condominium Association, may be used for this purpose.
 - B. Seller will not be liable to Buyer for any erroneous information provided by the association and included in the certificate.
 - C. Seller is not liable for the failure or delay of the association to provide the certificate in a timely manner, but in accordance with New Mexico law, the Purchase Agreement is voidable by Buyer until the certificate has been provided and for seven days thereafter, or until Closing, whichever occurs first.
3. **OBJECTIONS; TERMINATION.** Buyer has _____ days from the date of receipt of the resale certificate from the condominium owners association to object in writing to any matter disclosed and terminate the Purchase Agreement. The Earnest Money will be returned to Buyer upon termination. Failure to object in writing will constitute a waiver of the right to object and terminate.

If there is any conflict between the provisions of the Purchase Agreement and this Addendum, the provisions of this Addendum will control. The remaining provisions of the Purchase Agreement will remain in full force and effect.

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NEW MEXICO ASSOCIATION OF REALTORS® — 2025
ADDENDUM NO. _____
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RESIDENTIAL RESALE CONDOMINIUMS



BUYER(S)

_____ Buyer Signature	_____ Printed Name	_____ Date	_____ Time
_____ Buyer Signature	_____ Printed Name	_____ Date	_____ Time

SELLER(S)

_____ Seller Signature	_____ Printed Name	_____ Date	_____ Time
_____ Seller Signature	_____ Printed Name	_____ Date	_____ Time

If additional signature lines are needed, please use NMAR Form 1150 — Signature Addendum